

**TERMS AND CONDITIONS POLICY FOR THE USE
OF THE "ADAMO PAY" PLATFORM
2025**

**ADAMO S.A.S.
MAY 2025
VERSION 1**

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1. PURPOSE

This document establishes the Terms and Conditions applicable to the use of the ADAMO PAY Platform, a technological solution owned by ADAMO S.A.S., through which the monetization

of foreign currency and the dispersion of national and international payments is facilitated, in compliance with the applicable regulatory compliance standards in the prevention of money laundering and terrorist financing (AML/CFT).

Through ADAMO PAY, ADAMO acts as a technology provider that allows its Customers to transform currencies (USD, EUR or other previously enabled currencies) into local currency (COP, MXN, BRL) and execute payments to pre-validated beneficiaries, either individually or in bulk, through interoperable digital channels.

The provision of the service includes the provision of secure interfaces for the upload, validation and execution of payment transactions, the integration with AML verification systems and restrictive lists, as well as the issuance of transactional and operational traceability reports. ADAMO PAY does not act as a financial institution or as a custodian of public resources, and its function is limited exclusively to providing the necessary technological infrastructure for the management of the monetization and dispersion flows of funds, in accordance with the guidelines contractually defined with each Client.

These Terms and Conditions are issued pursuant to the provisions of Law 1480 of 2011, Law 527 of 1999, Law 1581 of 2012 and other legal provisions governing electronic contracting, consumer protection, validity of data messages and the processing of personal information in Colombia.

2. APPLICATION OF THE TERMS AND CONDITIONS

These Terms and Conditions regulate the legal relationship between ADAMO S.A.S., a company legally incorporated under the laws of the Republic of Colombia, identified with NIT 9014662591-1 (hereinafter, "ADAMO"), and any natural or legal person (hereinafter, the "Client") that accesses, uses or benefits, directly or indirectly, from the services and functionalities offered through the ADAMO PAY Platform. available on the official ADAMO domain: <https://adamoservices.co>.

The express or tacit acceptance of these Terms and Conditions constitutes a legally binding agreement, with full validity and enforceability, by which it is understood that the Client has read, understood and fully accepted its content, as well as the other policies, annexes and contractual guidelines that make up the regulatory framework for the use of the service. including, but not limited to, the Personal Data Processing Policy, the Information Security Policy and the Framework Agreement for the Provision of Services signed between the parties, when applicable.

The use of the ADAMO PAY Platform is intended exclusively for legal or natural persons with sufficient legal capacity to contract, acting in their own name or on behalf of duly authorised third parties. ADAMO reserves the right to verify the legal capacity of the Client, and to restrict

or suspend access in the event of noticing inconsistencies, omissions or situations that violate the legal or contractual framework in force.

Access, browsing, registration or use of ADAMO PAY automatically implies unconditional acceptance of these Terms and Conditions. If they do not agree with its content, the Client must refrain from continuing to use the Platform or its functionalities.

ADAMO may suspend, limit or terminate, temporarily or permanently, access to the service in the event of non-compliance with these Terms and Conditions, improper use of the service, or any conduct contrary to the law, public order or the principles of contractual good faith, without this generating an obligation to compensate or constitute a breach on the part of ADAMO.

3. SUPPLIER IDENTIFICATION AND CONTACT DETAILS

In compliance with the duty of information provided for in Law 1480 of 2011, it is hereby stated that the ADAMO PAY Platform is operated by ADAMO, a company legally constituted under Colombian law, identified with NIT 9014662591-1, with its principal address in the city of Pereira, Colombia.

Its headquarters are located at Carrera 16 Bis # 8 – 24, Oko Tower Building, 6th Floor, and the official service channel is the email contact@adamoservices.co. For contact purposes, ADAMO also makes available the mobile telephone line +57 321 626 5361.

Any request, requirement, complaint or exercise of rights may be submitted through the aforementioned channels, which will be available during the business hours established in Colombian labor legislation or as indicated in the User Service Policy.

4. DEFINITIONS

For the proper interpretation of these Terms and Conditions, the following definitions are adopted:

ADAMO PAY: Technological platform (Web, Mobile Web or API) operated by ADAMO, which allows its Clients to carry out currency monetization processes and dispersion of national or international payments, in compliance with regulatory standards and through enabled digital channels.

Beneficiary(s): Natural or legal person designated by the Client as the final recipient of payments processed through ADAMO PAY, whose identity, bank account and other relevant data must be previously validated in accordance with the AML/KYC policies in force.

Client(s): Natural or legal person who, with prior agreement with ADAMO, accesses and uses the monetization and dispersion services offered by ADAMO PAY, through authorized credentials and within the framework of a valid contractual relationship.

Consent: Prior, express and informed authorization granted by the Beneficiary or any other Personal Data Subject, through which he/she allows the processing of his/her information in accordance with the purposes defined by the Client, who acts as the Data Controller.

Compliance: Set of policies, procedures and controls implemented by ADAMO and its Clients to ensure that the operations carried out through the Platform comply with current regulations on the prevention of money laundering, terrorist financing and other illicit conduct.

Dispersion: The action of distributing monetized funds in favor of one or more Beneficiaries designated by the Client, through national or international electronic transfer mechanisms, such as ACH, instant payments or other enabled channels.

Restrictive List(s): Datasets from official and private sources that include individuals, entities, or jurisdictions subject to sanctions, surveillance, or legal restrictions, such as OFAC, UN, INTERPOL, PEP, or local and international AML databases.

Monetization: Process of converting foreign currencies (such as USD or EUR) into local currency (such as COP, MXN or BRL), executed through ADAMO PAY for dispersion purposes, in accordance with the values and rates previously agreed between the parties.

Payment Order: Instruction issued by the Client through the Platform, which contains the necessary data to execute a monetization and/or dispersion operation. This order can be made individually or by mass upload.

Platform: Set of technological components, including the web environment, mobile, API, order loading system, verification module and administrative dashboard, through which the services associated with ADAMO PAY are provided.

Authorized User(s): Person(s) linked by the Client who, using valid credentials, accesses the ADAMO PAY Platform to make inquiries, upload payment orders or manage operational information, according to the assigned roles.

5. FEATURES OF THE ADAMO PAY SERVICE

ADAMO PAY is a technological solution developed by ADAMO that allows its Clients to carry out foreign currency monetization operations and dispersion of national and international

payments to previously validated beneficiaries, in compliance with legal and regulatory standards on the prevention of money laundering and terrorist financing (AML/CFT).

Within the framework of this service, ADAMO PAY enables Clients to upload individual or bulk payment orders, negotiate monetization terms, perform previously authorized currency conversions, and execute payments through interoperable electronic channels. All of the above is done through a secure digital interface, with transactional support, traceability and validation mechanisms.

Available functionalities include, but are not limited to:

- Registration of Clients and authorized users with differentiated roles (query, loading, dispersion).
- Agreement on specific trading conditions (rates, exchange rates, amounts, periodicity).
- Upload and validation of payment orders manually or in bulk by means of a structured file.
- Data verification against AML restrictive lists (OFAC, UN, PEP, INTERPOL, among others).
- Execution of payments through bank transfer systems (ACH, instant payments, or others).
- Generation of operational reports and document traceability.

ADAMO PAY allows Clients to operate in Colombia, Mexico, Brazil or other jurisdictions enabled by ADAMO, subject to contractual approval and compliance with the operational and documentary requirements required in each case.

The solution is provided under a B2B technological model, without ADAMO acting as a financial institution, collector of resources from the public, custodian of funds, or as responsible for the automatic execution of orders without prior verification. All transactions are subject to validations of origin, identity and compliance before final approval.

6. USE AND REGISTRATION

6.1. B2B model and responsibility for authorisations

ADAMO PAY is a technological platform designed exclusively for use in business environments under a Business to Business (B2B) model. In this scheme, the Client, in its capacity as a legal or natural person with economic activity, acts as the Data Controller of the Personal Data of its operational users and the final beneficiaries of the payments.

It is solely the Client's responsibility to ensure that, prior to the execution of any operation, the prior, express and informed consent has been obtained from the owners of the personal data that will be processed within the framework of the use of the Platform, including:

- Data of the beneficiaries of payments (identification, financial information, contact, etc.);
- Data of your authorized users who interact with the Platform;
- Any other data transmitted to ADAMO in the course of the service.

ADAMO acts as the Data Processor, under the terms of article 3 of paragraph e) of Law 1581 of 2012, limiting itself to executing the Client's documented instructions for the processing of payments and the verification of regulatory compliance, without assuming responsibility for the legality, veracity or scope of the data collected by the Client.

Failure to provide sufficient proof of consent or compliance with the duty of information by the Client may lead to the immediate suspension of operations or service, without this implying any breach on the part of ADAMO.

Likewise, the Client recognizes that it is its sole responsibility to implement the privacy policies, authorization collection mechanisms and other obligations provided for in the General Personal Data Protection Regime, as well as to comply with sectoral regulations on the prevention of money laundering, terrorist financing (AML/CFT), and control of cross-border operations.

6.2. Registration and documentation requirements

To access the services offered by the ADAMO PAY Platform, the Client must complete a corporate registration process, which includes the creation of a business account, the assignment of authorized users with operational roles, and the signing of the Master Services Agreement, together with its technical, commercial and compliance annexes.

The registration and validation process is subject to the submission of the legal and operational documentation required by ADAMO for the purposes of verifying the Client's identity, legitimacy and risk analysis. Minimum documentation includes:

When the Client is a natural person with economic activity:

- Valid identity document;
- Single Tax Registry (RUT) with an issue date not exceeding one (1) calendar year or equivalent;
- Active bank certification;
- Support of economic activity or contract with identified source of funds.

When the Client is a legal entity:

- **General Company Information.**

- Certificate of existence and legal representation, **certificate of incorporation or equivalent document**, valid for no more than thirty (30) calendar days;
- Articles of association of the company;
- Copy of the identity document of the legal representative, **shareholders or associates**;
- Certification of shareholding composition issued by a public accountant, **legal representative, resident agent or directors of the company**;
- **Beneficial ownership information**;
- Single Tax Registry (RUT) or equivalent document;
- Bank certification;
- Support for economic activity and lawful origin of funds.

In addition, the Client must fill out the Know Your Customer (KYC) form, accept the Personal Data Processing Policy, and designate one or more authorized users with specific roles (e.g., payment upload, approval, consultation).

ADAMO reserves the right to require additional information or documentation, conduct interviews or apply external verification mechanisms, especially when:

- The Client has operations in high-risk jurisdictions;
- Inconsistencies are identified in the information provided;
- It is necessary to update the information during transactional monitoring.

The omission, falsehood or inconsistency in the documentation will prevent the activation or continuity of the service until the findings are corrected, without this implying non-compliance on the part of ADAMO. The Client declares to know and accept that access to the service is subject to the satisfactory validation of the onboarding process.

6.3. Service activation and security measures

Once the registration process has been completed, the legal and operational documentation has been validated, and the Framework Service Agreement has been signed, ADAMO will proceed with the technical activation of the Client's account within a maximum period of one (1) business day.

Activation includes:

- Enabling access to the Platform through corporate credentials;
- Setting up operational roles for authorized users (e.g., payment loading, review, dispersion);
- Integration of previously agreed commercial conditions, including types of operation, limits by amount, jurisdiction and frequency of use;

- Assignment of technical and operational support channels.

The ADAMO PAY Platform incorporates organisational and technological security measures aligned with the best practices in the payments sector, in order to guarantee the integrity, confidentiality and traceability of transactions. These measures include, but are not limited to:

- Multi-factor authentication (2FA) for the entry and validation of sensitive transactions;
- Automatic session lockout in the event of multiple failed access attempts or prolonged inactivity;
- Access control by role and function, with segregation of duties and authorization levels;
- Geo-restrictions and IP, where expressly set out in the contract;
- log logging and action auditing, accessible to the Client according to their profile level;
- Automatic verification of beneficiaries and recipients against AML/KYC restrictive lists.

The Client is responsible for safeguarding the access credentials, keeping the profiles of its authorized users up to date and immediately reporting any incident, security breach, improper access or anomalous use of the service.

ADAMO may suspend or limit access to the Platform as a preventive measure in the event of any indication of a security compromise, suspicious transaction or improper use, without this implying a breach of contract or generating an obligation to indemnify.

6.4. Grounds for Account Suspension or Termination

ADAMO may, unilaterally and without the need for prior judicial authorisation, temporarily suspend, restrict or permanently terminate the Client's access to the ADAMO PAY Platform and its functionalities, in any of the following cases:

- Inaccuracy, omission or falsehood in the information or documentation provided during the registration process, onboarding or in any subsequent update;
- Failure to comply with contractual obligations, including non-payment, unauthorized use of functionalities, or exceeding agreed operational limits;
- Evidence of suspicious, unusual or unjustified transactions in accordance with regulatory compliance policies and established risk monitoring parameters;
- Use of the service for illicit purposes or contrary to the law, such as tax evasion, undeclared operations, fraudulent triangulation, among others;
- Attempts at unauthorized access, impersonation, interference with security mechanisms, or any other event that affects the integrity of the system;
- Express request from a competent authority, national or foreign, in the framework of administrative, judicial or tax investigations;

- Termination of the contractual relationship or expiration of the term of provision of the service, without formal extension or renewal;
- Repeated refusal by the Client to update information required in periodic due diligence (KYC) processes.

The suspension may be carried out preventively when, in ADAMO's opinion, there is an imminent risk of affecting the legality, security or stability of the operation.

The definitive termination of the service will be notified to the Client in writing through the registered email, and will result in the deactivation of credentials, the blocking of access to the Platform, and, when applicable, the final settlement of pending services.

ADAMO will not be liable for losses, interruptions or damages arising from the suspension or cancellation of the service when this has occurred for justified reasons as established in this document.

6.5. Use of the Platform by Authorised Users

Access to the ADAMO PAY Platform is exclusively through authorized users designated by the Client in the activation process or during the service life cycle. These users will be able to perform different operational roles (e.g., query, payment load, approval, dispersion) according to the permissions assigned in the account's administrative environment.

The Client shall be responsible for:

- Designating, controlling, and updating the active users linked to your account;
- The custody and diligent use of access credentials, as well as the authentication tools implemented;
- The proper, lawful and compliant use of these Terms and Conditions by its authorized users.

Any action carried out on the Platform using the credentials issued to the Client or its authorized users will be understood as being carried out directly by the Client, who assumes the legal and operational responsibility for such actions.

The information uploaded, edited, or processed by users must be truthful, complete, updated, and traceable, especially that relating to beneficiaries, destination accounts, amounts, and economic justification of payments.

The Client undertakes to immediately revoke the access of any user who terminates their employment, contractual or trust relationship with their organization, or who has incurred in improper use of the service.

ADAMO may temporarily block access by authorized users when it detects unusual behavior patterns, compromised credentials or activities incompatible with the assigned profiles, without this constituting a breach of service.

7. DECLARATIONS AND COMMITMENTS OF USE

By accepting these Terms and Conditions, the Client declares that he understands and accepts that the use of the ADAMO PAY Platform implies direct legal responsibility and that he undertakes to use the services in accordance with the principles of legality, good faith, diligence, traceability and regulatory compliance.

In particular, the Client declares and undertakes the following:

7.1. Use the Platform only for lawful purposes and within the framework of its corporate purpose, refraining from carrying out operations that may constitute illegal, fraudulent, evasive activities or activities contrary to public order.

7.2. Ensure that all information provided to ADAMO, including beneficiary data, destination accounts, supporting documentation and justification of payments, is truthful, complete, verifiable and up-to-date.

7.3. Implement internal compliance, monitoring and control policies that guarantee that the operations carried out through ADAMO PAY comply with current regulations on the prevention of money laundering, terrorist financing, tax evasion and international restrictions.

7.4. Obtain in a valid and documented manner the prior, express and informed consent of all the owners of personal data whose data are processed within the framework of the use of the service, especially beneficiaries and operational users.

7.5. Not to transfer, sublicense or allow access to the Platform by unauthorized third parties, except with the prior express written authorization of ADAMO.

7.6. Refrain from manipulating, altering or interfering with the technical operation of the Platform, its validation processes, control systems or security mechanisms.

7.7. Comply with the operational, jurisdictional and technical limits contractually established with ADAMO, and report any unusual, suspicious or unauthorized transactions detected in the course of the operation.

7.8. Ensure the timely updating of its legal, commercial and financial information, as well as the profiles of authorized users, and respond to any improper use derived from its negligence in this matter.

7.9. Assume full responsibility for the legal, tax and regulatory effects of the operations carried out through the Platform, exonerating ADAMO from any obligation that has not been expressly assumed in the current contractual framework.

8. COST OF SERVICE

The services offered through the ADAMO PAY Platform are subject to the payment of an economic consideration by the Client, consisting of the following components:

- Cost per transaction: fixed or variable value for each dispersion order executed, depending on the number of beneficiaries, the channel used (ACH, immediate, international), and the complexity of the operation.
- Exchange Rate Margin: Applicable spread on the value of the monetized currency (USD, EUR or others), which will be determined according to the rate negotiated between the parties and may be subject to market conditions.

The final value of each transaction will be informed to the Client prior to its execution, through the confirmation module of the Platform, or under the terms agreed in the framework contract or commercial proposal.

The Client declares to understand that the rate and the exchange margin are variables that may fluctuate depending on factors such as:

- Jurisdiction of origin and destination of the funds;
- Volume of the trade;
- Type of beneficiary;
- Operational risk and compliance associated with the transaction;
- Commissions imposed by correspondents, intermediary banks or payment networks.

The Client undertakes to verify and accept the economic conditions of each trade before confirming its execution. Failure to do so will not relieve the Customer of its payment obligation or result in refunds for differences in interpretation.

ADAMO guarantees that the prices and charges applied will be transparent, informed in advance, and will be expressed in the currency corresponding to the transaction. Additional charges not authorised by the Client will not be accepted, unless they come from third parties linked to the execution of the service (e.g. financial institutions, payment networks, technology providers).

9. PAYMENT MECHANISMS AND CONDITIONS

The Client may make payment for the contracted services through the mechanisms authorised by ADAMO, which will be determined by mutual agreement within the framework of the service contract or in the commercial proposal accepted by the Client. These mechanisms may include, but are not limited to:

- Direct compensation through monetized securities, when the Client uses the currency conversion services and the Platform automatically deducts the agreed commissions from the converted value;
- Monthly invoicing, with cutting and consolidation of operations carried out during the corresponding period, to be paid by the Client by interbank transfer to the accounts designated by ADAMO;
- Early discount at the time of approval of the dispersion order, when configured in the Client's operating flow.

ADAMO will not accept cash payments, unidentified consignments, money orders, or transfers made to accounts not officially registered in the contract. Any attempt to pay by unauthorized means will be considered invalid and will be subject to report.

The corresponding electronic invoice will be issued and sent to the email registered by the Client, in compliance with Colombian tax regulations. This invoice will contain:

- The description of the services used;
- The number of transactions and their unit value;
- The detail of the margin applied in each monetization operation (when applicable);
- The total to be paid and the corresponding taxes.

The Client undertakes to review each invoice issued and report any inconsistencies within five (5) business days of receipt. After this period without objections, the invoice will be understood to have been accepted in its entirety.

Failure to make timely payment will entitle ADAMO to temporarily suspend access to the Platform, withhold orders in progress and/or apply default interest at the maximum rate allowed by Colombian law, without prejudice to other contractual or legal actions that may be applicable.

10. VOLUNTARY CANCELLATION AND REFUND REQUEST BY THE CUSTOMER

The Client may request the cancellation of a service contracted through the ADAMO PAY Platform only when the corresponding order has not been fully or partially executed, and there has been no currency conversion or dispersion of funds to beneficiaries.

Such request must be submitted within a maximum period of twenty-four (24) calendar hours following the confirmation of the operation, by written communication sent to ADAMO's

official email: contact@adamoservices.com, the exclusive channel enabled for this type of requirement.

The application must meet the following minimum requirements:

- Be signed by the Client's legal representative or authorized person;
- Include the order or trade number to be cancelled;
- Attach a valid bank certification and identity document of the applicant;
- State the reasons for the request.

ADAMO will evaluate the admissibility of the cancellation based on the following criteria:

- The technical, operational and legal status of execution of the order;
- The existence of conversions already applied, AML validations completed or dispersion initiated;
- The existence of costs incurred on behalf of the Client (e.g. commissions, operating or network expenses).

In the event that the application is accepted and it is verified that there has been no total or partial execution, ADAMO may proceed with the reimbursement of the corresponding amount, after deduction of the applicable administrative and operational expenses. This deduction may consist of a fixed value or a percentage of the amount of the canceled transaction.

The refund, when applicable, will be made within a maximum period of fifteen (15) calendar days, counted from the receipt of the complete documentation and the positive validation of the case.

ADAMO reserves the right to reject any application submitted after the indicated deadline, incomplete or with respect to operations already initiated, executed or that imply direct or indirect financial impact for the Platform, its payment networks or operational partners.

11. INDEMNITY

The Client accepts and acknowledges that he/she is solely responsible for his/her use of the ADAMO PAY Platform, as well as for any conduct or omission that directly or indirectly affects ADAMO, its employees, allies, contractors, suppliers or third parties linked to the operation of the service.

Consequently, the Client undertakes to hold harmless and hold harmless ADAMO against any claim, complaint, demand, investigation, legal action or proceeding, of an administrative, judicial or extrajudicial nature, national or foreign, arising from:

- Improper use, illegal, unauthorized or contrary to these Terms and Conditions;

- The execution of payments to unidentified, unauthorized or incompletely documented beneficiaries;
- The provision of false, incomplete or fraudulent information about the Client, its users or beneficiaries;
- Failure to comply with any applicable contractual, legal, tax or regulatory obligation;
- The collection, processing or transmission of personal data without the due authorization of their owners;
- The use of the Platform for legal risk activities, such as evasion of AML controls, triangulation of funds, or simulated use of business operations;
- The infringement of intellectual property rights, confidentiality or data protection of third parties;
- The omission of reports required by regulations in force in the jurisdiction of the Client or its beneficiaries.

This indemnification obligation includes, but is not limited to, legal costs, professional fees, administrative penalties, litigation costs, damages and other reasonable costs incurred by ADAMO as a result of the defense or settlement of such claims.

This clause shall remain in force even after the termination of the contractual relationship between ADAMO and the Client, as long as there are events arising during its validity that may give rise to subsequent liability.

12. PERSONAL DATA

ADAMO, in compliance with the provisions of Law 1581 of 2012, Decree 1377 of 2013, and other regulations that regulate the general regime for the protection of personal data in Colombia, carries out the processing of personal data only within the framework of the purposes authorized by its Clients, under the principles of legality, purpose, freedom, security, veracity, access and confidentiality and the Personal Data Processing Policy available on the official ADAMO website.

12.1. Personal Data Processing Policy

The processing of personal data collected in the course of providing the service is governed by the provisions of ADAMO's Personal Data Processing Policy, available for permanent consultation on the official website <https://adamoservices.co>. This policy establishes the applicable principles, the rights of the holders, the service channels and the procedures for their exercise.

12.2. ADAMO as Data Processor

In the context of the service provided through ADAMO PAY, ADAMO acts as the Data Processor of the personal data provided by the Client, who holds the status of Data Controller, in the terms defined by Law 1581 of 2012.

ADAMO only processes personal information based on the Client's documented instructions, in the development of the contractually agreed purposes, and in accordance with the applicable security, traceability, confidentiality and legal standards.

ADAMO will not be responsible for the legality, veracity or sufficiency of the authorisations granted by the data subjects, nor for the fulfilment of the Client's duty of information. The valid obtaining of the prior, express and informed consent of the owner will be the sole responsibility of the Client, including in relation to:

- Collection and transmission of sensitive data (such as banking, transactional, or financial information);
- Authorization to send information by digital means (email, WhatsApp, etc.);
- Cross-border treatment, where applicable;
- Onboarding to compliance flows and restrictive lists.

12.3. Data transfer contract

As a prerequisite and essential for the activation of the service, the Client must sign a personal data transfer contract with ADAMO, which establishes the purposes, the required security measures, the confidentiality duties, the traceability of the data, the rules on international processing, and the protocols for responding to security incidents.

Without the existence of this agreement, ADAMO reserves the right not to initiate or continue any flow of operation involving the processing of personal data on behalf of the Client.

13. LEGAL VALIDITY OF ELECTRONIC ACTS AND ELECTRONIC SIGNATURE

All expressions of will, transaction confirmations, records of payment orders, dispersion instructions, acceptance of conditions, validations and other acts executed through the ADAMO PAY Platform enjoy full legal validity, in accordance with the provisions of Law 527 of 1999, which recognizes the functional equivalence between data messages and written documents.

By virtue of this regulation, it is expressly recognized that:

- Actions performed by the Client's authorized users using credentials issued by ADAMO have the same probative value as a handwritten signature;
- Orders confirmed electronically via the Platform are deemed validly issued, with full contractual effect;
- The electronic records generated by ADAMO, including logs, time stamps, authentication codes, source IPs, session identifiers and cryptographic hashes, constitute sufficient proof of the existence, authorship and traceability of the acts performed.

When the operation requires it, ADAMO may enable simple or advanced electronic signature mechanisms for certain functions within the Platform (such as special orders, fee agreements, declarations of origin of funds, etc.), which will comply with the authenticity and integrity requirements demanded in Decree 2364 of 2012.

The Client accepts that all interactions carried out through the Platform, once validated in accordance with the technical mechanisms provided by ADAMO, are fully opposable, enforceable and enforceable, and that he/she may not claim ignorance of the acts recorded under his/her credentials or in his/her operational account.

14. LIABILITY

ADAMO executes its services under a regime of obligation of means, which implies that it undertakes to deploy its best technical, operational and legal efforts to provide the contracted service with diligence, professionalism and reasonable continuity. However, ADAMO does not guarantee a specific result, nor can it ensure the absolute absence of failures in processes that depend on multiple technological, contractual or external factors.

Consequently, ADAMO will not be responsible for interruptions, errors, slowness, non-execution of orders, or any disruption to the service when this is attributable, among others, to:

- Force majeure events or acts of God, including natural disasters, armed conflicts, pandemics, blockades or protests;
- Failures in telecommunications networks, Internet infrastructure, or third-party connectivity;
- Delays or errors in the information provided by the Client or its authorized users;
- Conduct or omissions of the Client or the beneficiaries related to the transaction;
- Non-compliance or failures of third-party suppliers, financial institutions, payment networks, correspondent banks, operational allies or control authorities;
- Delays or rejections arising from AML/KYC validations or freezing measures ordered by a competent authority;
- Scheduled or corrective maintenance necessary for the operation of the Platform.

ADAMO's liability, if legally attributable to it, will be limited in any case to the amount actually paid by the Client during the calendar month immediately prior to the event giving rise to the claim, without the recognition of loss of profit, loss of opportunity, consequential damage or any other type of indirect or consequential damage.

The Client acknowledges that the digital and financial environment in which ADAMO PAY operates is subject to technological, regulatory and operational risks specific to the sector, and therefore expressly assumes the risks inherent in the use of the service, especially when acting contrary to the applicable instructions, contractual conditions or regulations.

15. GOVERNING LAW, DISPUTE RESOLUTION AND JURISDICTION

These Terms and Conditions, as well as any act, legal relationship, operation or controversy arising from the use of the ADAMO PAY Platform, shall be governed and interpreted exclusively in accordance with the laws of the Republic of Colombia, without considering rules on conflict of laws or references to foreign jurisdictions.

In particular, the following regulations shall apply, without prejudice to other relevant sectoral or contractual provisions:

- Law 1480 of 2011 – Consumer Statute (applicable to trade between companies);
- Law 527 of 1999 – Recognition and legal validity of data messages and electronic signatures;
- Law 1581 of 2012 – General Regime for the Protection of Personal Data;
- Civil, commercial and tax regulations applicable to contracts entered into between individuals.

Any difference, controversy, claim or dispute, of a contractual or non-contractual nature, that arises between the Client and ADAMO, must be submitted in the first instance to a direct settlement stage, in which the parties undertake to exhaust an amicable conciliation channel through the exchange of electronic communications.

This stage of direct settlement will have a maximum duration of forty-five (45) calendar days, counted from the formal receipt of the communication that exposes the dispute. During this period, the parties must provide arguments, evidence and proposals for solutions through the official channels designated by each one.

If after this period a mutually satisfactory solution is not reached, the dispute may be submitted to the ordinary Colombian jurisdiction, before the civil judges of ADAMO's principal domicile, in accordance with the rules of territorial and functional jurisdiction established in the General Code of Procedure.

The Client expressly accepts this exclusive jurisdiction, waiving any other territorial jurisdiction, arbitration not agreed in writing, or recourse to foreign authorities, unless expressly provided otherwise by means of a particular contractual clause.

16. INTELLECTUAL PROPERTY AND RESTRICTIONS ON USE

All elements protected by intellectual and industrial property rights that are part of the ADAMO PAY Platform – including, but not limited to, its graphic design, source code, software, algorithms, user interface, operational flows, contents, trademarks, trade names, technical documentation, generated reports, embedded functionalities, validation mechanisms and other technological tools – are the exclusive property of ADAMO S.A.S. or its licensors duly authorized.

The signing of the service contract and the acceptance of these Terms and Conditions do not grant the Client any right of ownership, assignment, exploitation license, sublicense or use other than that expressly authorized by virtue of the object of the contracted service.

In particular, the Client shall refrain from:

- Copy, modify, reproduce, distribute, publish, or commercialize any part of the software or content on the Platform;
- Reverse engineer, decompile, or extract source code;
- Incorporate the Platform or parts of it into other systems, applications or services of third parties without prior and express authorisation;
- Using ADAMO's distinctive signs, trademarks, logos, names or visual content for advertising or commercial purposes without written consent;
- Create derivative works or functional imitations that affect the originality or competitive advantage of the Platform;
- Use the test or production environment for purposes other than those authorized in the contract.

Any unauthorized use by the Client or its users may result in immediate suspension of the service, termination of the contract and the corresponding legal actions, without prejudice to ADAMO's right to claim compensation for damages arising from the misuse of its intangible assets.

This protection is supported by the regulatory framework applicable in Colombia, including Law 23 of 1982, Andean Decision 351 of 1993, Law 44 of 1993, Law 603 of 2000, and the international treaties ratified by the Colombian State in the field of intellectual property.

17. REPORTING MECHANISMS AND COMMUNICATION CHANNELS

ADAMO makes official communication channels available to the Client for the reporting of any situation that may affect the legality, security, availability or integrity of the service provided through the ADAMO PAY Platform.

Customer and its authorized users may submit reports, requests, complaints, alerts, claims, or notifications related to:

- Technical failures or operational instability of the Platform;
- Irregularities in the execution of payments or discrepancies in processed orders;
- Information security incidents or personal data breaches;
- Suspected unlawful, unauthorized, or non-compliant transactions;
- Credential misuse or impersonation;
- Any act that contravenes these Terms and Conditions or the contract signed.

The reports must be sent to the exclusive service channel provided by ADAMO:

- Official Email: dataprotection@adamoservices.co

In order for the report to be formally treated, it must contain at least:

- Identification of the sender and the associated Customer;
- Clear description of the facts, dates and context;
- Documentary, technical or graphic support (where possible);
- Means of contact for notification of progress or resolution.

ADAMO will confirm receipt of the report within five (5) business days and will proceed with its technical, legal and operational evaluation. If appropriate, it may adopt preventive or corrective measures, such as:

- Temporary suspension of the service or users linked to the reported event;
- Review and adjustment of affected operations;
- Notification to competent authorities, when applicable;
- Updating security settings or monitoring.

ADAMO reserves the right to reject anonymous, unfounded reports or reports that do not meet the minimum required seriousness. However, you warrant that you will not retaliate against Customers who act in good faith and report actual or reasonably suspicious situations.

Reports related to information security incidents, leaks or unauthorized access will be treated with priority and confidentiality, in accordance with internal protocols and current regulations on personal data protection and cybersecurity.

18. VALIDITY, MODIFICATIONS AND ACCEPTANCE OF UPDATES

These Terms and Conditions come into force as of their publication on ADAMO's official channels, and will govern all legal relations between ADAMO and the Clients who access, use or contract the services offered through the ADAMO PAY Platform.

ADAMO reserves the right to modify, update or delete all or part of these Terms and Conditions at any time, without the need for prior authorization from the Client, provided that the modifications derive from:

- Normative, regulatory or jurisprudential changes that affect the service;
- Technological evolution, improvement of functionalities or expansion of coverage;
- Changes in operational infrastructure, business schemes or contractual conditions;
- Need to strengthen security, traceability or regulatory compliance mechanisms.

The modifications will be published on the official ADAMO website and/or within the Platform, under the name "Updated Version", which will include their respective effective date. Where the changes affect material aspects of the service or modify relevant rights or obligations of the Client, ADAMO may, at its discretion:

- Request the express acceptance of the new version;
- Send notification via email to the registered representative;
- Suspend access until the reading and acceptance of the new text is confirmed.

In all other cases, it will be understood that the continuity in the use of the service after the publication of the update implies the tacit and binding acceptance of the new terms by the Client.

ADAMO will keep a history of previous versions and may make them available to Customers or to the competent authorities in the event of a dispute or legal requirement.